MEZO SURGERY: SURGEON ENGAGEMENT CONTRACT

BETWEEN

CONSULT FOR AFRICA MANAGEMENT SERVICES LIMITED (RC: 9580329), a company incorporated under the Companies and Allied Matters Act 2020, with its registered office at 2 Tom Ogboi Avenue, Lekki Phase 1, Lagos, trading as **Mezo** and, for the purposes of this Contract, as **Mezo Surgery** ("**Mezo**")

AND

DR _____ (MDCN Folio No. _____), of _____ (the "**Surgeon**")

(each a "**Party**", together the "**Parties**")

DATED _____ **2026**

RECITALS

A. Mezo Surgery is Mezo's planned-surgery service. The patient contracts with and pays Mezo one fixed, all-in price for an operation, agreed before surgery, covering the surgeon, the anaesthetist, the theatre, standard implants and consumables, and the recovery stay.

B. Mezo wishes to engage the Surgeon, case by case, to perform operations for Mezo Surgery patients, and to introduce the Surgeon to doctors and patients as a named Mezo Partner Surgeon.

C. This Contract is separate from, and in addition to, the Independent Practitioner Services Agreement that governs the Surgeon's consultations booked on the Mezo platform (the "**Platform Agreement**"). This Contract governs surgical Cases and the Partner Surgeon relationship. Where the two conflict on those matters, this Contract prevails.

1. DEFINITIONS

"All-in Price" means the fixed price Mezo agrees with the patient for a Case, as built from the Case Bundle.

"Case" means one patient's operation under Mezo Surgery, from the decision to operate to the end of the Episode of Care.

"Case Bundle" means Mezo's defined package for a procedure: what is included, the day limits, and the Outlier rules.

"Episode of Care" means the period from the pre-operative assessment to ninety (90) days after the operation, or such other period as Schedule 2 sets for a procedure.

"Mezo-sourced Patient" means a patient who reaches the Surgeon through Mezo, its referral routes, its campaigns or its referring doctors, as recorded on the Mezo platform.

"Surgeon-introduced Patient" means a patient the Surgeon brings to Mezo Surgery from the Surgeon's own practice, as recorded on the Mezo platform.

"Outlier" means an event that takes a Case outside its Case Bundle under the Bundle's published rules (for example, intensive care beyond the day limit, a device upgrade, or conversion from

laparoscopic to open surgery).

"Partner Facility" means a facility that has passed the Mezo Network Facility Assessment Criteria and holds a Mezo Surgery Facility Agreement covering the procedure.

"Privilege" means the Surgeon's grant, recorded on the Mezo platform, to perform a named procedure, at a named Partner Facility or network-wide, independently or under supervision.

"Surgeon-owned Facility" means a Partner Facility in which the Surgeon, or a member of the Surgeon's immediate family, holds ten per cent (10%) or more of the shares or profits, or which the Surgeon otherwise controls or manages.

"Surgeon Fee" means the professional fee payable to the Surgeon for a Case under Schedule 2.

2. ENGAGEMENT

2.1 Mezo engages the Surgeon as an independent contractor to perform Cases for which the Surgeon holds an active Privilege. Nothing in this Contract creates employment, partnership in law, joint venture or agency. "Partner Surgeon" is a description of the relationship, not a legal partnership.

2.2 The engagement is non-exclusive. The Surgeon remains free to practise elsewhere, subject to Clause 11.

2.3 Mezo is not obliged to offer any minimum number of Cases. The Surgeon is not obliged to accept any Case offered.

3. REGISTRATION, INDEMNITY AND PRIVILEGES

3.1 The Surgeon shall hold, throughout the engagement, full registration with the Medical and Dental Council of Nigeria and a current annual practising licence. **The Surgeon shall not see, assess or operate on any Mezo patient in Nigeria until that registration is confirmed to Mezo in writing.** Until then the Surgeon may be introduced only in the terms Mezo and the Surgeon agree in writing, and may not be held out as available to treat patients in Nigeria.

3.2 The Surgeon shall hold professional indemnity cover of not less than the amount in Schedule 2, and shall provide evidence on signing and on each renewal.

3.3 Privileges are granted per procedure on evidence of training and case volume, and may be provisional and supervised before they are independent. Mezo may suspend a Privilege at once on a patient-safety concern, giving reasons in writing, and shall review the suspension within fourteen (14) days.

3.4 The Surgeon shall tell Mezo within forty-eight (48) hours of any complaint to the MDCN, any disciplinary proceeding, any claim, or any change in registration or cover.

4. THE CASE

4.1 **Suitability.** The Surgeon shall assess each patient and decide whether to operate. The Surgeon may decline any Case on clinical grounds, and shall tell the patient plainly when surgery is not the right answer.

4.2 **Consent.** The Surgeon shall obtain informed consent personally, including the material risks, the alternatives (including not operating), and the expected recovery.

4.3 **Standards.** The Surgeon shall operate only at a Partner Facility, shall follow the WHO Surgical Safety Checklist in every Case, and shall comply with Mezo Surgery's clinical protocols and the Partner Facility's rules.

4.4 **Team.** Mezo engages and pays the anaesthetist and the theatre team out of the All-in Price. The Surgeon may propose a named assistant or anaesthetist; Mezo's approval shall not be unreasonably withheld.

4.5 **Implants and devices.** Implants and consumables come from Mezo's formulary. The Surgeon's choice of device shall rest on clinical merit and value to the patient. **The Surgeon shall disclose in writing any financial interest in a device, supplier or distributor** before using its products in a Case, and that disclosure shall be recorded on the Case.

4.6 **Off-bundle cases.** Where a Case cannot be priced within a Case Bundle (for example, a revision or a complex reconstruction), the Surgeon shall give Mezo the clinical plan and Mezo shall quote the patient. Devices in such Cases are billed at cost.

5. PRICE AND PAYMENT

5.1 **Mezo sets the All-in Price** after consulting the Surgeon on the clinical content of the Case. For Mezo Surgery Cases the Surgeon shall not quote fees to, or collect any payment from, the patient or the patient's family.

5.2 The Surgeon Fee for each procedure is set in Schedule 2 and is fixed for the Case once the All-in Price is agreed with the patient, save under Clause 6.

5.3 The Surgeon Fee covers the pre-operative assessment, the operation, inpatient care and ward rounds, and all post-operative reviews within the Episode of Care.

5.4 Mezo shall pay the Surgeon Fee by bank transfer:

(a) for a Case paid by the patient in advance, within the period in Schedule 2 after discharge;

(b) for a Case funded by an HMO or insurer, within the period in Schedule 2 after Mezo receives payment. If a claim is rejected for a reason within the Surgeon's control (for example, missing operative notes), Mezo may recover the Surgeon Fee for that Case.

5.5 Withholding tax is deducted at the statutory rate and a receipt provided. Mezo shall give the Surgeon a monthly statement of Cases, fees and deductions.

6. COMPLICATIONS, RETURN TO THEATRE AND READMISSION

6.1 The Surgeon shall attend and manage complications arising within the Episode of Care.

6.2 **No further Surgeon Fee is payable** for a return to theatre or a readmission within the Episode of Care that arises from the index operation.

6.3 Facility and other costs of an Outlier are handled under the Case Bundle's rules. Mezo carries the facility cost of a return to theatre within the Episode of Care, save where Schedule 2 provides otherwise for a procedure, and save in a Surgeon-owned Facility, where Clause 6A applies.

6.4 The Surgeon shall report any serious adverse event to Mezo within twenty-four (24) hours and take part in Mezo Surgery's morbidity and mortality review. The review is for learning and is conducted in confidence.

6A. SURGEON-OWNED FACILITIES

6A.1 **Disclosure.** The Surgeon shall declare every Surgeon-owned Facility in Schedule 1 on signing, and any change within fourteen (14) days. Before a Case is booked at a Surgeon-owned Facility, the patient shall be told in writing that the Surgeon has an interest in it and that the patient may ask for the Case at another Partner Facility.

6A.2 **Separate facility agreement.** A Surgeon-owned Facility is used only after it has passed the Mezo Network Facility Assessment Criteria, and only under its own Mezo Surgery Facility Agreement. The facility's share of the All-in Price is set in that agreement and paid to the facility, not to the Surgeon, and never forms part of the Surgeon Fee. The Surgeon Fee under Schedule 2 is unchanged by where the Case takes place.

6A.3 **Allocation.** Mezo decides which Partner Facility hosts a Case, on the patient's needs, the patient's choice, safety and value. The Surgeon shall not make a Case conditional on its being done at a Surgeon-owned Facility.

6A.4 **Complications.** In a Surgeon-owned Facility, the facility cost of a return to theatre or a readmission within the Episode of Care is carried by the facility, not by Mezo, and no further charge is made to the patient.

6A.5 **Standards and audit.** A Surgeon-owned Facility meets the same accreditation, theatre and WHO checklist standards as any other Partner Facility. Mezo may audit it on reasonable notice, and its outcomes are recorded and reviewed under Clauses 6.4 and 8 by a clinician who has no interest in it.

6A.6 **Mezo-sourced Patients.** Clause 11 applies in full. A Mezo-sourced Patient seen at a Surgeon-owned Facility remains a Mezo Surgery patient for the Episode of Care and for any later procedure within the period in Clause 11.1.

6A.7 **Records.** The Surgeon-owned Facility holds the clinical record of the Case and shall give Mezo the records it needs to administer the Case, to record outcomes and to answer any complaint or claim.

7. THE REFERRING DOCTOR

7.1 Where a patient was referred by a doctor, the Surgeon shall acknowledge the referral within two (2) working days, send the referring doctor a written summary within five (5) working days of discharge, and return the patient to the referring doctor for ongoing care.

7.2 **No fee, gift or other inducement shall be paid or received for a referral, in either direction,** by the Surgeon or by Mezo.

8. OUTCOMES

8.1 The Surgeon shall record, for every Case, the outcome measures Mezo Surgery uses for that procedure, including complications, returns to theatre, readmissions and patient-reported outcomes.

8.2 Mezo may publish outcome data in aggregate. Data identifying the Surgeon's own results shall be published only with the Surgeon's written approval. Data identifying a patient shall never be published.

9. NAME, LIKENESS AND MARKETING

9.1 The Surgeon permits Mezo to use the Surgeon's name, photograph, qualifications and biography to introduce the Surgeon as a Mezo Partner Surgeon, to doctors and to patients.

9.2 Every factual claim about the Surgeon shall be approved by the Surgeon before first use. No material shall claim the Surgeon is better than another practitioner, promise a result, or use a patient's image without that patient's explicit written consent.

9.3 All marketing shall comply with the Code of Medical Ethics of the Medical and Dental Council of Nigeria and the rules of the Advertising Regulatory Council of Nigeria. The Surgeon may withdraw consent under Clause 9.1 on thirty (30) days' notice.

10. DATA AND RECORDS

10.1 Each Party shall comply with the Nigeria Data Protection Act 2023. Patient data shall be used only for the patient's care, for the administration of the Case, and for the outcome recording in Clause 8.

10.2 Clinical records of a Case are held by the Partner Facility and on the Mezo platform. The Surgeon shall have access to them for the patient's care and for the Surgeon's own appraisal and defence of any claim.

11. MEZO-SOURCED PATIENTS

11.1 For twelve (12) months from first contact, the Surgeon shall not divert a Mezo-sourced Patient to have the same procedure outside Mezo Surgery, and shall not encourage the patient to do so.

11.2 This does not restrict a patient's own free choice, the Surgeon's treatment of Surgeon-introduced Patients, emergencies, or referrals received through normal professional channels.

12. CANCELLATION

12.1 The Surgeon shall give Mezo at least seventy-two (72) hours' notice of being unable to operate on a scheduled Case, save in emergency, and shall cooperate in rescheduling or in handing the Case to another Partner Surgeon with the patient's agreement.

12.2 Where a patient cancels late, any Surgeon Fee payable is set by Schedule 2.

13. LIABILITY

13.1 The Surgeon is responsible for the Surgeon's own clinical acts and omissions, and shall indemnify Mezo against claims arising from them, to the extent not caused by Mezo or a Partner Facility.

13.2 Mezo is responsible for its own obligations under this Contract. A Partner Facility's responsibility for its premises, equipment and staff is governed by its agreement with Mezo.

14. TERM AND TERMINATION

14.1 This Contract runs for twelve (12) months from signature and renews for further twelve-month periods unless either Party gives thirty (30) days' notice before the renewal date.

14.2 Either Party may end this Contract on thirty (30) days' written notice.

14.3 Mezo may end this Contract at once if the Surgeon's registration, licence or indemnity cover lapses, or if the Surgeon commits a serious breach or conduct that puts patients at risk.

14.4 On termination, the Surgeon shall complete or properly hand over every open Case, and Clauses 6, 6A.4, 6A.7, 7.2, 8.2, 10, 11 and 13 survive.

15. DISPUTES AND GENERAL

15.1 Disputes shall be resolved by negotiation, then mediation at the Lagos Multi-Door Courthouse, then arbitration by a sole arbitrator under the Lagos Court of Arbitration rules, seated in Lagos, under the Arbitration and Mediation Act 2023.

15.2 This Contract is governed by the laws of the Federal Republic of Nigeria. It may be signed electronically and in counterparts. No variation is effective unless in writing and signed by both Parties.

SCHEDULE 1: THE SURGEON

Item	Detail
Full name and postnominals	
MDCN folio number and registration type	
Specialty and subspecialty	
Own practice and address	
Indemnity provider, policy reference, expiry	
Procedures for which Privileges are sought	
Partner Facilities preferred	
Contact for referrals (named person, number)	
Disclosed interests (devices, suppliers, distributors)	
Surgeon-owned Facilities (name, address, nature and size of interest)	

SCHEDULE 2: COMMERCIAL TERMS

Item	Term
Surgeon Fee, per procedure	[Per the attached fee table, one line per procedure]
Payment, patient-paid Case	[ ] working days after discharge
Payment, HMO or insurer-funded Case	[ ] working days after Mezo receives payment
Episode of Care	90 days, unless the fee table sets another period
Minimum indemnity cover	NGN [ ] per claim
Late patient cancellation	[ ]
Surgeon-owned Facility	Facility share set in its own Mezo Surgery Facility Agreement; Surgeon Fee unchanged

EXECUTION

For CONSULT FOR AFRICA MANAGEMENT SERVICES LIMITED, trading as Mezo:

Name: _____ Title: _____

Signature: _____ Date: _____

The Surgeon:

Name: _____ MDCN Folio: _____

Signature: _____ Date: _____